What is a Home Rule Charter?

A **Home Rule Charter** is a voter-approved document that gives Oliver County broader authority to govern local matters, instead of relying only on the powers specifically granted by the North Dakota Legislature. It serves as the county's "rulebook" for how it is organized and what powers it may exercise.

IT'S LOCAL
Created for Oliver County and approved by county voters.

IT'S A PLAN
Sets out the structure of county government and the powers the county may use.

IT'S OPTIONAL
The county is not required to have a home rule charter. Voters decide.

But does not automatically CREATE a sales tax. That must be voted on by the people in a future election after the home rule charter is voted in.

IT'S NOT UNLIMITED
State law still applies, and there are important limits. The charter cannot override state criminal laws and must follow North Dakota's home rule statutes.

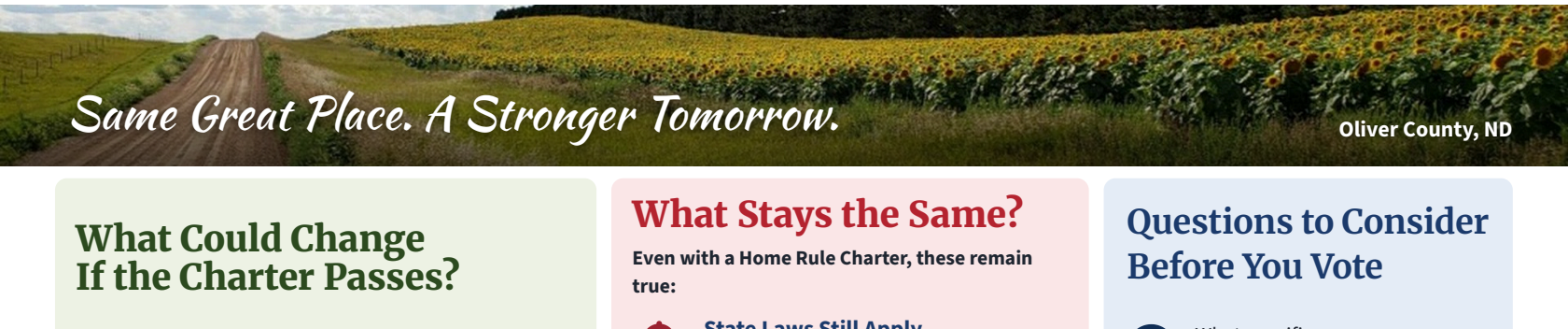
Quick Facts

- **On the ballot:** Oliver County voters will decide whether to adopt a Home Rule Charter in the 2026 election.
- **Voter approval required:** It only takes effect if a majority of county voters vote "Yes."
- **Local control:** Gives the county broader authority on county matters, such as land use, ordinances, and certain enforcement tools.
- **Not unlimited:** Must follow the North Dakota Constitution and state law. Cannot conflict with state criminal laws, and certain subjects remain restricted.
- **Can be changed:** Future amendments or repeal generally also go to voters.
- **Read the actual charter:** The details matter. The specific powers in Oliver County's proposed charter determine what changes, not just the phrase "home rule."



"Home rule gives local communities more say in local matters — and the responsibility to use that authority wisely."

— NORTH DAKOTA LEAGUE OF CITIES (APPLIES TO COUNTIES AS WELL)



What Could Change If the Charter Passes?

Depending on the powers included in the charter, Oliver County could have expanded authority in areas such as:

Land Use & Development
More flexibility to create and enforce local land-use, zoning, and development regulations.

Ordinances & Enforcement
Ability to adopt local ordinances and, in some cases, enforce them with penalties (within state law limits).

Finances & Taxes
Potential authority for certain local taxes, fees, or other revenue tools (as allowed by the charter and state law).

County Government Structure
Flexibility in how county offices operate, the roles and duties of officials, and other administrative matters.

Addressing Local Issues
More ability to respond to county-specific challenges, such as energy development, data centers, infrastructure, and land stewardship.

What Stays the Same?

Even with a Home Rule Charter, these remain true:

State Laws Still Apply
The county must follow the North Dakota Constitution and state laws, including criminal laws and eminent domain.

Cities and Townships Protected
Home rule does not take away the authority of cities or townships within the county.

Voter Control
You still have the right to vote on charter adoption, future amendments (in most cases), and county officials.

Public Meetings and Transparency
Open meeting and public record laws still apply.

Your Property Rights
State and federal constitutional protections for property rights remain in place.

Questions to Consider Before You Vote

1. What specific powers are included in Oliver County's proposed charter?
2. How might those powers affect land use, development, and local regulations?
3. Could the charter affect taxes, fees, or other costs?
4. Do you believe local control will help Oliver County address current and future challenges?
5. Have you read the full charter or a reliable summary?

YOUR VOICE MATTERS.

VOTE

INFORMED. ENGAGED. STRONGER TOGETHER.

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KNOW THE FACTS BEFORE YOU VOTE

Oliver County Home Rule Charter

Oliver County Home Rule Charter

LOCAL PEOPLE. LOCAL DECISIONS.
AN INFORMED VOTE.

KNOW THE FACTS BEFORE YOU VOTE.



Read the Proposed Charter

SCAN THE CODE TO OPEN IT

Find the full draft charter and meeting information on the Oliver County website: **www.olivercountynd.org**

OLIVER COUNTY

Our County. Our Home.

**PEOPLE. LAND. OPPORTUNITY.
A BRIGHT FUTURE.**